NewsBank inc.

Recall Gascon Campaign Has Sufficient Signatures; Federal Study Shows Longer Prison Sentences Reduce Recidivism; 43% Increase in Officers Shot on Duty and Other Stories: Monday Morning Memo - El Monte votes no-confidence in DA Gascon; PUC must release records to public; Lifetime GPS monitoring of sex offenders OK; Social media companies may have to disclose methods of censorship; Pelosi's husband charged with DUI

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Los Angeles District Attorney

Gascon policy blamed for man's release from life prison term before arrest in killing of Pacoima transient

A man arrested in the slaying of a transient in Pacoima was released from prison last year after serving just eight years of a life sentence for a double murder because District Attorney George Gascón refused to transfer his case from juvenile to adult court, the Southern California News Group has learned. Victor Bibiano, 30, was taken into custody last month for the April 16 killing of 42-year-old Mario Rodriguez, who was found shot at a transient encampment at Dronefield Avenue and Terra Bella Street in the foothill area of Pacoima.

Orange County Register

LA's DA Gascon under pressure from rising violent crimes

Violent crime is spiking in the streets of Los Angeles as robberies in broad daylight, heists on train tracks and homicides are on the rise. Many long-time residents are more worried than ever. LA District Attorney George Gascon took office in late 2020, riding a wave of support for criminal justice reform but now, that support seems to have eroded as the crime surge continues.

NBC News

Family urges judge not to re-sentence man on death row

The widow and two daughters of a man who was kidnapped, robbed and murdered three decades ago urged a judge Wednesday to reject a request by the Los Angeles County District Attorney's Office to vacate his killer's death sentence and re-sentence him to life in prison without the possibility of parole. "I have lived 30 years in the peace that the state of California gave to me," Fred Rose's widow, Sharon, told Superior Court Judge William Ryan.

MyNewsLA

Los Angeles DA George Gascon defends policies after 2 police officers killed: 'We have an imperfect system'

Los Angeles District Attorney George Gascon on Tuesday defended his policies amid criticism following reports that the deceased suspect accused of killing two El Monte, California, police officers, was on probation at the time of the incident. Justin William Flores, who is accused of fatally shooting El Monte Police Department Cpl. Michael Paredes and Officer Joseph Santana, had a previous strike conviction and received two years probation for a felony firearm possession charge.

Fox News

35th California city votes 'no confidence' against woke DA George Gascon

Elected officials in the California city that lost two police officers in a shooting last week have unanimously issued a vote of "no confidence" against embattled Los Angeles County District Attorney George Gascon - becoming the 35th city in the Golden State to do so. "We believe that D.A. Gascon's policies have now been shown to be detrimental to public safety in El Monte and Los Angeles County, and also detrimental to the goal we share, of rehabilitating people away from criminal activity, as shown by the high failure rate of D.A. Gascon's policy of not holding people accountable for their criminal acts," stated a resolution affirming the El Monte City Council's 5-0 vote Tuesday night.

New York Post

Los Angeles DA Gascon issued directive that may have helped man who killed 2 police officers avoid prison

A California man accused of killing two police officers may have avoided additional prison time for previous charges because of a directive issued by Los Angeles District Attorney George Gascon upon taking office. Justin William Flores is accused of killing El Monte police officers Michael Parades and Joseph Santana in a shootout on Tuesday. He was shot and killed in the shootout. Flores had a previous strike conviction and revived two years' probation for a charge of being a felon in possession of a firearm and for possession of narcotics for personal use.

Fox News

Group has enough signatures for Gascón recall election

The Committee to Recall District Attorney George Gascón announced yesterday it has gathered more than the 566,857 signatures needed to place a recall on the November ballot, but is continuing to collect signatures in light of the inevitability that there are invalid ones on the petitions. The deadline for delivering petitions to the Office of Registrar-Recorder is July 6. The anti-Gascón movement has been buoyed by the recall in San Francisco of Chesa Boudin, a district attorney with policies paralleling those of Gascón.

Metropolitan News-Enterprise

Courts & Rulings

Supreme Court says certain gun crimes are not 'crimes of violence' under federal law

The Supreme Court ruled in favor of a Virginia man who is seeking to challenge one of his convictions for using a firearm in an attempted robbery. The ruling will allow the man to attempt to reduce his sentence by 10 years. In a 7-2 decision Tuesday, the court decided that a conviction for attempted robbery under the federal Hobbs Act does not fit the definition of a "crime of violence," and therefore does not trigger an enhanced sentence when a firearm is used.

CNN

Supreme Court strikes down New York gun law - rendering California's law dead too

Americans have a constitutional right to carry concealed firearms in public, the Supreme Court ruled Thursday. The 6-3 decision struck down a New York law requiring individuals to show a special need for self-defense to carry guns outside the home, applies equally to a similar law in California, and will allow thousands of guns on city streets. "The constitutional right to bear arms in public for self-defense is not a 'second-class' right," Justice Clarence Thomas wrote for the court's majority.

San Francisco Chronicle

Supreme Court overturns Roe v. Wade, eliminating constitutional right to abortion

The Supreme Court ruled Friday that Americans no longer have a constitutional right to abortion, a watershed

decision that overturns Roe v. Wade and erases a reproductive right the high court established nearly five decades ago. In the most closely watched and controversial case to arrive at the Supreme Court in years, a majority of the justices - all of whom were appointed by Republican presidents - held that the right to end a pregnancy was not found in the text of the Constitution nor the nation's history.

USA Today

Justices give inmates path to swap execution methods

The U.S. Supreme Court ruled Thursday that state death row inmates can ask to be executed in a method not approved in their states by filing a civil rights suit, reversing a ruling by the Eleventh Circuit that compelled the prisoners to file habeas corpus petitions instead. In a 5-4 ruling, the high court said Michael Nance, a death row inmate in Georgia who challenged the state's execution by lethal injection in favor of a firing squad, was right in pursuing the change by filing a suit under Section 1983 of the Civil Rights Act, which allows individuals to sue state agencies over civil rights violations.

Law360

Ninth Circuit won't reinstate Yagman as member of bar

Stephen Yagman, a controversial civil rights attorney, remains excluded from practice before the Ninth U.S. Circuit Court of Appeals, under a 2-1 decision by a panel on Friday. In a per curiam decision, Circuit Judges Milan D. Smith Jr. and Ryan D. Nelson said that Yagman is not eligible for reinstatement to the bar of the Ninth Circuit because, even though he has been returned to the roll of lawyers in California, he is still disbarred in the state of New York.

Metropolitan News-Enterprise

Federal appeals court tosses injured lawyer's Fourth Amendment claim against ICE agent

An agent with U.S. Immigration and Customs Enforcement has qualified immunity from a Fourth Amendment claim in a lawsuit filed by an injured lawyer, a federal appeals court has ruled. The 8th U.S. Circuit Court of Appeals at St. Louis ruled June 16 that the ICE law enforcement officer, Ronnet Sasse, did not violate a right that was clearly established at the time of the June 2018 incident.

ABA Journal

Court says California utilities commission must obey state Public Records Act

In a broad victory for government transparency, an appeals court has ruled that the California Public Utilities Commission must comply with a state law requiring all agencies to promptly release information to the public. In a unanimous decision issued Friday, a three-judge panel of the 1st District Court of Appeal in San Francisco said the commission's lengthy and open-ended administrative procedures violate the strict timelines of the California Public Records Act.

Los Angeles Times

Ninth Circuit wrings hands over California private prison ban, copycat laws

Questioning the "practical effects" California's ban on privately run immigration detention facilities would have on the federal government's immigration authority, several Ninth Circuit judges wondered Tuesday whether other states would enact copycat legislation to slow federal government operations. "You're talking about a private business that has no other business other than supporting the federal government - they don't do anything else. The whole purpose of these private companies is to take over a government responsibility," Circuit Judge Ryan Nelson, a Donald Trump appointee, said.

Courthouse News Service

Seventh Circuit upholds lifetime GPS monitoring for some convicted sex offenders

The US Court of Appeals for the Seventh Circuit Tuesday upheld lifetime GPS monitoring for some convicted sex offenders in Wisconsin. The plaintiffs in Braam v. Carr are repeat sex offenders who are subjected to lifetime GPS monitoring as a result of their convictions. The plaintiffs stated that the requirement for lifetime GPS monitoring violated their Fourth Amendment rights. The GPS monitoring program requires the plaintiffs to comply with GPS monitoring "for the rest of their lives unless they permanently move to a different state."

Jurist

Appeals court rules in favor of students banned from wearing gun shirts to school

A federal appeals court has sided with Wisconsin students who filed suit after being told they could not wear shirts with gun logos to school. The suit was filed by a former student at Shattuck Middle School in Neenah and a student at Kettle Moraine High School. Principals at the schools are named as defendants. In February 2020, a seventh grade student at Shattuck Middle School wore a shirt with a "Smith & Wesson" logo to school. The logo featured an image of a revolver.

WBAY

Supreme Court says Maine cannot exclude religious schools from tuition assistance programs

The Supreme Court said Tuesday that Maine cannot exclude religious schools from a tuition assistance program that allows parents to use vouchers to send their children to public or private schools. The 6-3 ruling is the latest move by the conservative court to expand religious liberty rights and bring more religion into public life, a trend bolstered by the addition of three of former President Donald Trump's nominees.

CNN

Good faith wasn't required of insured during negotiations

The covenant of good faith and fair dealing did not apply to a contract for insurance coverage on an art collection which provided that the parties would try to reach an agreement as to the extent of partial damage to any works and, if they were not in accord, that the value would be established by auctioning the pieces, with the insurer paying the difference between the value stated in the policy and the sale price, the Court of Appeal held yesterday.

Metropolitan News-Enterprise

Judge reverses governor decision, reinstates parole for SLO County teen's murderer

A San Luis Obispo Superior Court judge ruled to reinstate parole for Royce Casey, one of three people involved in the 1995 murder of a teenage Central Coast girl. The decision comes almost a year after Gov. Gavin Newsom denied Casey's previously granted parole, stating in his ruling that Casey still needed to deepen his insight as to why he committed his crime before he could safely be released. In July 1995, 15-year-old freshman Elyse Pahler was lured to a Nipomo eucalyptus grove and murdered by three of her classmates.

San Luis Obispo Tribune

Prosecutors

Mother pleads not guilty in slayings of three children at Reseda apartment

A woman accused of killing her three young children in a Reseda apartment last year pleaded not guilty Monday to three murder charges stemming from their deaths. Liliana Carrillo, 32, is charged in the April 10, 2021, killings of her 6-month-old daughter Sierra, 3-year-old daughter Joanna and 2-year-old son Terry. The criminal complaint includes an allegation that Carrillo used a knife as a deadly and dangerous weapon on her youngest daughter, according to the Los Angeles County District Attorney's Office.

NBC Bay Area

Man charged with threatening OCDA Spitzer

A 33-year-old man was charged Thursday with threatening Orange County District Attorney Todd Spitzer, his family and his staff in a hate crime. Michael Joseph Brady was charged with five counts each of criminal threats and threatening public officials with sentencing enhancements for a hate crime, according to court records. Brady, who was arrested Tuesday, was accused of making the threats on Monday. He listed his occupation as stockbroker and was being held on $1 million bail, according to jail records.

MyNewsLA

Ex-Orange County police officers accused of kidnapping, illegal bounty hunting

A pair of former Orange County police officers are facing allegations of kidnapping and working as illegal bounty hunters. Rodger Corbett, 49, a former sergeant in the Fullerton Police Department, and Kevin Pedersen, 34, formerly of the Anaheim Police Department, were indicted earlier this month in Orange County Superior Court. They face felony charges of kidnapping, false imprisonment by violence and fraud as well as enhancements for using a firearm, according to court records. The two will be arraigned in court on June 29.

Los Angeles Times

Progressive San Fran DA ousted - which other soft-on-crime prosecutors could be next?

Frisco district attorney Chesa Boudin, born to a pair of convicted Weather Underground domestic terrorists, was sent packing this month by disaffected San Franciscans. Boudin had declared when he was elected in November 2019: "There can be no justice when we utilize prison and jail as the solution to all our problems. We must think differently. We will think differently." A month after taking the oath of office, Boudin announced that the city's prosecutors will no longer ask for cash bail as a condition for release, calling the pretrial detention practice "discriminatory."

Townhall

US prosecutors will likely drop other charges for Avenatti

Federal prosecutors say they expect to drop additional charges against incarcerated lawyer Michael Avenatti after he pleaded guilty to multiple counts of wire fraud for swindling his clients out of settlement funds they were due. In a court filing Tuesday, the U.S. attorney's office said it "expects to move to dismiss the remaining counts of the Indictment after sentence is imposed." The move comes days after Avenatti entered guilty pleas in federal court to four counts of wire fraud and a tax-related charge. He is scheduled to be sentenced on those charges on Sept. 19.

AP

Policy/Legal/Political

Foundation to pay off mortgages of slain El Monte officers: Both were 'husbands and fathers'

The Tunnel to Towers Foundation recently announced it is paying off the home mortgages of the two El Monte police officers killed while investigating a possible stabbing at a local motel. "Corporal Michael Paredes and Officer Joseph Santana were both husbands and fathers, raised in the city of El Monte and had deep ties to the community they served. You reached out and touched their families with your generosity in their darkest hours. Thank you for supporting America's heroes and their families," the foundation said in a statement.

Fox11

Federal Study: Longer sentences reduce recidivism

The United States Sentencing Commission released a study Tuesday confirming its findings from an earlier study that federal criminals who receive longer sentences are less likely to commit new crimes than those who receive shorter sentences. The California-based Criminal Justice Legal Foundation (CJLF) notes that the study, Length of Incarceration and Recidivism (2022), contradicts claims by progressive district attorneys across the U.S. that longer sentences increase recidivism and shorter sentences and rehabilitation programs reduce recidivism.

Criminal Justice Legal Foundation

State OKs lawsuit over Wesson appointment, throwing his future at City Hall in doubt

A state official cleared the way for a group of South Los Angeles community leaders to sue over the selection of Herb Wesson as a temporary member of the Los Angeles City Council, throwing the future of his City Hall appointment into question. Atty. Gen. Rob Bonta issued an opinion granting the request from the Southern Christian Leadership Conference of Southern California to challenge Wesson's appointment in court.

Los Angeles Times

Shoplifting lawlessness takes deadly turn in California

The death of a supermarket worker at the hands of a thief in California has fuelled anger over a law that critics claim effectively decriminalises shoplifting. Manny Huizar, 24, was shot dead during a confrontation in the alcohol aisle at a Safeway store in San Jose this month. The killer is still free. Huizar's death has highlighted a controversial state law that makes stealing goods of up to $950 a misdemeanour, or minor offence.

The Sunday Times

California bill would make gunowners buy liability insurance

California would be the first state to require gun owners to buy liability insurance to cover the negligent or accidental use of their firearms, if lawmakers approve a measure announced Thursday. "Guns kill more people than cars. Yet gun owners are not required to carry liability insurance like car owners must," Democratic state Sen. Nancy Skinner said in a statement. She said the costs of gun violence shouldn't be borne by taxpayers, survivors, families, employers and communities: "It's time for gun owners to shoulder their fair share."

AP

Will recalling George Gascón change anything?

If you read the Los Angeles Times, or any other newspaper covering Southern California, you are probably like me, tired of reading stories about someone committing a crime against society and humanity. In most cases the crime is straightforward - there is one or more perpetrators and one or more victims. That is easy to understand. Where it gets complex is how our criminal justice system prosecutes these individuals. District attorneys prosecute felonies, and some misdemeanors, while city attorneys prosecute most misdemeanors.

Insights on LA

What San Francisco DA's recall could mean for reformers

The widely publicized and successful recall campaign of San Francisco District Attorney Chesa Boudin has been described by some as a warning call for progressive prosecutors and rehabilitative justice advocates nationwide. But attorneys, advocates and experts say factors outside of Boudin's control were used to paint a picture of a soft-on-crime prosecutor, which ultimately resonated with the 55% of voters in San Francisco who decided to remove him from office, and that the national impact of the campaign has been overblown.

Law360

California may make social media firms report enforcement

Social media companies would have to make public their policies for removing problem content and give detailed accounts of how and when they remove it, under a proposal being considered by California legislators who blame online chatter for encouraging violence and undermining democracy. The bipartisan measure stalled last year over free speech concerns, but Democratic Assemblyman Jesse Gabriel said Tuesday he hopes to revive his bill by adding amendments he said will make it clear that lawmakers don't intend to censor or regulate content.

AP

Los Angeles County/City

Former sheriff's division chief faces possible contempt over subpoena spat

A finding of contempt should be considered against a retired division chief of the Los Angeles County Sheriff's Department who failed to honor a subpoena to testify at a recent Sheriff Civilian Oversight Commission hearing on deputy gangs, an attorney for Los Angeles County argues in court papers filed Tuesday. The subpoena required that Matthew Burson be present for the commission's June 10 session, which was devoted to finding whether such groups exist in the department.

City News Service

Investigators probing 'deputy gang' violence were told not to ask about Banditos, chief says

Los Angeles County Sheriff Alex Villanueva was transitioning into office late in 2018 when then-Capt. Matthew Burson was overseeing a high-profile criminal investigation into an alleged assault involving East L.A. deputies at a station party. At the time, Burson said he was given instructions on behalf of the incoming sheriff on how to handle the case: Investigators, he was told, should avoid questions about the Banditos, the gang-like group of deputies whose members were accused of instigating the fight.

Los Angeles Times

Can LBPD's former chief unseat a scandal-plagued incumbent sheriff?

Four years ago Alex Villanueva defeated an incumbent Los Angeles County Sheriff for the first time in a century. Now, retired Long Beach Police Chief Robert Luna wants to do the same to Villanueva. Though the LA County Registrar-Recorder/County Clerk's office has yet to certify the election - officials are still processing more than 74,100 outstanding ballots - Villanueva's nearly 31% of the vote means he's on track for a runoff election with Luna, who took more than 25% of the vote. The remainder was split among the other seven candidates in the race.

Long Beach Post

Crime/Public Safety

LAPD officers shoot, kill armed carjacking suspect in Pacoima

A carjacking suspect was fatally shot by police officers in Pacoima late Sunday evening. After receiving calls of a "man with a gun" in the Laurel Canyon and Van Nuys Boulevard area, who had reportedly been pointing the gun at pedestrians in the area and had attempted a carjacking at the intersection, Los Angeles Police Department officers arrived to the scene just after 10:40 p.m. Upon their arrival, the suspect, in his 20s, allegedly pointed his firearm and opened fire at the officers, at which point they shot him and took him into custody.

CBS LA

More details emerge in fatal shooting of 2 California police officers

With preparations underway for a memorial service for two El Monte police officers killed last week during a confrontation at a motel with a suspect, an investigator on Monday revealed more details about what transpired at the Siesta Inn. Cpl. Michael Paredes, Officer Joseph Santana and a sergeant who is a field supervisor went to the motel at 10327 Garvey Ave. on June 14 to check to see if there was a woman who was injured, possibly stabbed, Sheriff's Lt. Omar Camacho said.

San Gabriel Valley Tribune

101 police officers shot in line of duty, a 43% increase from 2021

The National Fraternal Order of Police (FOP), the world's largest organization of law enforcement officers, has counted 101 officers shot in the line of duty as of April 1, including 17 fatally, so far in 2022. The latest figure marks a 43% increase compared to the number of officers shot at the same time period in 2021 and a 63% increase compared to 2020, FOP reports. "We are in the midst of a real crisis. The violence directed at law enforcement officers is unlike anything I've seen in my 36 years of law enforcement," National FOP President Patrick Yoes said in a Friday statement.

Fox News

Consumer

Amazon and eBay target critics with harsh consequences

Bad behavior without consequence is the new norm for U.S. e-commerce sites. It's no longer about doing what is right; it's about using your resources to crush your critics when the truth is exposed. Both websites enable and facilitate an inexhaustible supply of counterfeit, fraudulent, and replica goods while hiding fraudulent activities behind illusory policies and ineffective website policing. Their actions (and inactions) expose them to a flood of criticism, accompanied by unhappy sellers and defrauded consumers.

The Counterfeit Report

Meta let counterfeit phone chargers and hoverboards sell on Facebook Marketplace, charity says

Facebook's parent company Meta stands accused of failing to act on warnings over dangerous and non-compliant electrical goods on Facebook Marketplace. Charity Electrical Safety First said it sent a report to Meta at the end of May, alerting the tech giant to nearly 60 listings of electrical goods which are non-compliant with basic product standards. But the charity claims that despite sending several follow-up emails, it received no response and the listings were not removed.

Independent

Court: Amazon customers can sue over lack of toxic warnings

The California Supreme Court has left intact a ruling that allows customers to sue Amazon.com for failing to warn buyers that some products it sells may contain hazardous substances such as mercury. The court in its decision Wednesday denied a request by Amazon's lawyers to review a lower court ruling that said Amazon violated the state's Proposition 65, which requires companies to warn consumers about products they make or sell that contain chemicals known to cause cancer, reproductive harm or birth defects.

AP

California/National

Whoops! 6 Dem state lawmakers wrongly backed Serrano's pension-hiking scheme

Two letters The Anaheim Investigator obtained from the California Public Employees Retirement System (CalPERS) through the public records act show that six members of the state legislature not only quietly lent their names in support of a bid by Gerry Serrano, president of the Santa Ana Police Officers Association, to increase his future pension earnings, but circumstantial evidence suggests at least five of them received hefty campaign contributions in return for their efforts.

Orange Juice Blog

Collier County fallen officers charity founder arrested, accused of misusing donations

The founder of the Robert L. Zore Foundation, also known as Fallen Officers, has been arrested and is facing charges for soliciting charitable contributions without a license and misusing those contributions. Rosemary Zore, 45, was arrested on Tuesday by the Florida Department of Agriculture and Consumer Services (FDACS), with assistance from the Collier County Sheriff's Office. Zore is the daughter of Robert Zore, who was a Miami-Dade police officer that died in the line of duty when she was 7 years old, according to the organization's website.

WINK

Six major cities on pace to pass historic 2021 violent crime totals halfway through 2022

Violent crimes are on the rise in six of America's major cities and set to outpace the already historic levels of 2021 violent crime. Baltimore, Los Angeles, Philadelphia, Washington D.C., Atlanta, and New York City are all on pace to break their 2021 levels of violent crime halfway through this year, with the nation's largest city leading the group, according to crime data reviewed by Fox News.

Fox News

Texas official says Uvalde classroom door could not be locked, police may not have checked

Police had enough officers and firepower on the scene of the Uvalde school massacre to have stopped the gunman three minutes after he entered the building, and they would have found the door to the classroom where he was holed up unlocked if they had bothered to check it, the head of the Texas state police testified Tuesday, pronouncing the law enforcement response an "abject failure."

NBC4

Urban voters are tired of crime and disorder. Will progressive DAs listen?

For all of the effects that November's midterm elections will have on the balance of power in Washington, local

races will feature prominently when the history of this year is written. As dysfunction has increasingly come to define everyday life in American cities, efforts to halt progressive prosecution have taken center stage. Over 55 percent of San Franciscans voted to remove Chesa Boudin, whose prosecutorial tenure coincided with a conspicuous rise in property crime and public disorder.

Manhattan Institute

LA County motion aimed at expanding diversion is gutted, then put on hold

On Tuesday, June 14, the Los Angeles County Board of Supervisors was scheduled to consider a motion authored by Supervisor Holly Mitchell to find funding to expand the Office of Diversion and Reentry, at the continued urging of community groups focused on reducing the number of people in the county's jails. Supervisors Janice Hahn and Sheila Kuehl, however, penned an amendment that made significant cuts to the motion.

Witness LA

Pelosi's husband charged with DUI over May collision in California

The husband of House Speaker Nancy Pelosi, D-Calif., was charged with two alcohol-related driving misdemeanors Thursday stemming from a collision last month in Napa County, California. The county district attorney's office issued a criminal complaint against Paul Pelosi, 82, for driving under the influence of alcohol causing injury and driving with a blood alcohol level at or above 0.08%.

NBC News

Not safe anymore': Portland confronts the limits of its support for homeless services

Portland's homelessness problem now extends well beyond the downtown core, creating a crisis of conscience for this fiercely liberal city that for years has been among America's most generous in investing in homeless support services. Tents and tarps increasingly crowd the sidewalks and parks of Portland's leafy suburban neighborhoods. And the sewage and trash from unsanctioned RV encampments pollute the watersheds of the Willamette and Columbia rivers.

Los Angeles Times

Convictions/Pleas/Sentences

Vallejo woman stole patients' identities, gets 3 years

A Vallejo woman who admitted stealing identities of mentally disabled patients at the treatment center where she worked, and filing false tax returns that netted her nearly $50,000, was sentenced Thursday to three years and three months in federal prison. Tamara Manuel, now 52, pleaded guilty to felony charges of wire fraud and aggravated identity theft in April 2019, three weeks after she was charged, and has been free without bail since then.

San Francisco Chronicle

Branson, Mo. man pleads guilty to threatening Los Angeles County Sheriff's Office

A Branson man pleaded guilty in federal court to threatening over the internet to injure employees of the Los Angeles County California Sheriff's Office. Joshua L. Bippert, 27, pleaded guilty before U.S. District Judge M. Douglas Harpool to one count of transmitting a threat across state lines to injure another person. Bippert admitted he communicated the threat over the internet to the sheriff's department on Sept. 20, 2020. Bippert sent a private message in response to a social media post on the department's Instagram account.

KY3

Corrections

State's juvenile prison workers score $50,000 bonuses

Gov. Gavin Newsom and six labor unions have struck a deal to give up to $50,000 in bonuses to keep juvenile prison workers on the job, as first reported by CalMatters in March. Between now and next year, California taxpayers will pay about $54.5 million for the incentive payments, according to estimates by the Department of Finance. The contracts represent one of the largest retention bonuses the state has ever offered to employees. A finance department spokesperson said the agreements estimate that 1,019 direct care and 211 non-direct care employees will meet the criteria for some amount of bonus.

CalMatters

Articles of Interest

Officer Arrue and Family Kelly Clarkson (Video)

A track cycling Olympian and now an LAPD Officer, Officer Arrue and his wife founded Agape Village, a school for students with special needs. They were inspired by their daughter Bella who with lives with cerebral palsy. Watch their inspiring segment on The Kelly Clarkson Show.

The Kelly Clarkson Show

Bill Cosby sexually assaulted teen in 1975, civil jury rules; must pay her $500K

A California jury has found that Bill Cosby sexually assaulted Judy Huth at the Playboy Mansion in 1975 when she was a teenager. Huth, now 64, was awarded $500,000 after four bizarre days of deliberations. Although Cosby's been accused of sexual misconduct by 60 women, this was the first civil case to reach trial. Cosby, who denies a sexual encounter occurred, did not attend the trial in Santa Monica.

Yahoo Entertainment

Family of Sherman Oaks accountant sues gunman who allegedly shot him to death

The family of a 61-year-old certified public accountant shot and killed inside a multimillion-dollar Encino mansion in February is suing the alleged gunman. The lawsuit, filed Friday in Los Angeles County Superior Court, alleges Ronald Kolodkin negligently handled a handgun inside a home in the 16800 block of Encino Hills Drive, resulting in the death of 61-yer-old Warren Sacks of Sherman Oaks. Public records show that the address matches that of Kolodkin's residence.

Orange County Register

Beer puns on tap in Fifth Circuit ruling on selling craft beer to-go in Texas

A federal appellate judge sitting in New Orleans, Louisiana used a litany of alcohol-related puns and pop culture references in a Monday opinion limiting the authority of the agency that regulates the booze industry in Texas. The opinion by Donald Trump-appointed Circuit Judge Cory T. Wilson gets into the sud-soaked language right out of the gate: "This is a case about beer. It turns on the meaning of the word "owned," a pint-sized word with stout implications for craft brewers in Texas."

Law & Crime

First Circuit splits on whether warrantless pole-mounted video surveillance violates Fourth Amendment; District Court suppression order reversed

Last week, the First Circuit issued a decision that could be destined for Supreme Court review, but that nonetheless will immediately impact the course of criminal defendants' Fourth Amendment rights, particularly concerning government video camera surveillance. The split en banc decision centers on whether recordings obtained from a remotely controlled digital video camera mounted on a utility pole across from a private residence that was continuously recording the area immediately in front of that home should be suppressed, and whether the camera's installation was a "search" requiring a warrant.

Davis Right Tremaine LLP

Pensions

State worker union gets vocal in fight against CalPERS' office requirements

A union representative who works at CalPERS is leading one of the most visible fights in California state government against strict in-office requirements amid a new COVID-19 surge. Hoang-Van Nguyen, a district labor council president with SEIU Local 1000, addressed the retirement system's Board of Administration at an open meeting last week, demanding more flexibility to work remotely amid virus outbreaks. "Infection rates keep rising," Nguyen told the board.

Sacramento Bee

For more ADDA news and information, visit http://www.laadda.com.

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